020-25817510
Fax No.020-25818391
Email. ceokirkee@gmail.com

AE/Tender/2022-23/P-66
Office of the Cantonment Board,
(Govt. of India, Ministry of Defence),
Kirkee, Pune 411 003.
Date 07 September, 2022.

Tender ID : 2022_DGDE_707560

The Cantonment Board, Kirkee Pune the said work E-tenders are invited on CPPP Website http://eprocure.gov.in/eprocure/app, from the contractors is interested in leasing / Licensing the following works in Kirkee Cantonment during the year 2022-23. Therefore to execute /persons/firms/Service Provider-I who are interested having expertise and experience in similar type of work.

Online tender form and documents is available on http://eprocure.gov.in/eprocure/app, as per critical dates. The tenderer has to submit online bids viz. Technical bid and financial bid. Bidders who have not enrolled / registered in e-procurement should enroll/register before participating through the website, http://eprocure.gov.in/eprocure/app. The portal enrolment is free of cost.

The following required documents are to be uploaded by the Public sector/ IP-1 for obtaining clearance from Cantonment Board/ Local Defence Authorities for installation of mobile tower along with Technical Bid and Financial Bid in two cover system.

A. For work: Lease/License of sites for erection of cell on wheel mobile Tower to provide un-interrupted coverage in Cantonment area.

TECHNICAL BID: Technical Bid/Pre-Qualification conditions.

B. Signed and Scanned copy of all below documents.

i) Copy of relevant license/Infrastructure Provider Registration Certificate from the Department of Telecommunications

ii) Data Sheet.

(a) Name of Service/Infrastructure Providers
(b) Location
(c) Tower Reference
- (i) Height
- (ii) Weight
- (iii) Cell on Wheel Description
- (iv) No. of Antennae

iii) Copy of SACFA clearance/Copy of SACFA application for the said location submitted to WPC wing of DOT with registration number as WPC acknowledgement alongwith undertaking that in case of any objection/rejection TSRI/TC will take corrective action/remove the tower.

iv) Copy of structural stability certificate for ground based tower. In case of rooftop BTS towers, structural stability certificate for the building and tower based on written approvals of any authorized structural engineer of MES/DRDO/CPWD/Cantonment Board/State PWD Authorities/CBRI Roorkee/IIT/NIT.

v) Copy of fire test certificate issued by Automotive research Association of India (ARAI) to the manufacturers of the Diesel Generator (DG) sets.

vi) The CEO of Cantt. Board/ Local Defence Authority may also seek submission of the copy of No Objection Certificate from building owner/entities having rooftop rights or rooftop tenants in case of roof based tower. In case of defence land where leasehold rights are required, land availability certificate from Cantonment Board/ DEO, as the case may be/ will be necessary.

vii) Acknowledgement receipt issued by TERM cells (DOT) of the self certificate submitted by the Public Sector/IP-I in respect of mobile tower/BTS(ground based/rooftop) in the format as prescribed by TEC/DOT, establishing/Certifying that all general public area around the tower will be within safe EMR exposure limit as per peak traffic measurement after the antennae started radiating.

viii) Application Form duly filled and signed on each page.

ix) Acceptance letter (Annex II)

x) Scanned copy of slip of RTGS/NEFT/Cantt. Receipt amounting to Rs. 5,000/- plus GST (non refundable) reflecting as cost of Tender From.

xi) Scanned copy of slip of E-Chhawani Receipt amounting to Rs. 1,10,000/- reflecting as Earnest Money Deposit. Contractor will have to follow the below steps for depositing Earnest Money online only :
1. Visit E-Chhawani using https://kirkee.cantt.gov.in. 2. Go-to citizen login 3. Select Challan system->Service Details->Service Category->Creditors Deposits->EMD. (Here you can make payment using online mode with Debit Card, Credit Card, UPI etc) along with the tender. The tender not accompanied with Earnest Money from such contractors will be considered as non-bonafide

xii) Signed and scanned copy of affidavit on stamp paper of Rs. 100/- (Format of Affidavit is provided as Annex I)

Tender form fee should be deposited through **RTGS/NEFT only** at the following Bank details mentioned below.

| | | |
|---|---|---|
| **Account Holder** | **:-** | **Chief Executive Officer, Kirkee Cantonment Board.** |
| **Account No.** | **:-** | **480286911** |
| **Name of Bank** | **:-** | **Indian Bank** |
| **Branch** | **:-** | **Kirkee** |
| **Branch Code** | **:-** | **1481** |
| **IFSC Code** | **:-** | **IDIB000K155** |
| **MICR No.** | **:-** | **411019007** |

**FINANCIAL / PRICE BID.**

A) Schedule of price bid in the form of BoQ-xxxx.xls. Don't tamper / Change the BoQ-xxxx.xls sheet otherwise bid will be rejected. Bidder shall submit their bid online only at CPPP website http://eprocure.gov.in/eprocure/app. And not by any other methods i.e. telegram, email, post etc. The Cantonment Board / CEO reserves the right to accept or reject any or all tender(s) without assigning any reason. No manual bid will be accepted.

Chief Executive Officer
Kirkee Cantonment Board.

020-25817510
Fax No.020-25818391
Email. ceokirkee@gmail.com

AE/Tender/2022-23/P-66
Office of the Cantonment Board,
(Govt. of India, Ministry of Defence),
Kirkee, Pune 411 003.
Date :- 07 September 2022.

APPLICATION FORM

To,

M/s.

_____

_____

SUB: E-TENDER FORM FOR LEASE/LICENSE OF SITES FOR ERECTION OF CELL ON WHEEL MOBILE TOWER TO PROVIDE UN-INTERRUPTED COVERAGE IN CANTONMENT AREA.

The following tender documents for the subject work as per e-tender notice no AE/Tender/2022-23/P- 66 dated 07 September 2022 are hereby uploaded.

i) Application form for submission of tender

ii) Terms and conditions

iii) Particulars, Specifications and Special Conditions. If any.

1. The tender will only be uploaded by those contractors having

i) Copy of relevant license/Infrastructure Provider Registration Certificate from the Department of Telecommunications.

ii) Data Sheet.

(iii) Name of Service/ Infrastructure Providers

(iv) Location

(v) Tower Reference

(vi) Height

(vii) Weight

(viii) Cell on Wheel Description

(ix) No. of Antennae

(x) Copy of SACFA clearance/Copy of SACFA application for the said location submitted to WPC wing of DOT with registration number as WPC acknowledgement alongwith undertaking that in case of any objection/rejection TSRI/TC will take corrective action / remove the tower

(xi) Copy of structural stability certificate for ground based tower based on written approvals of any authorized structural engineer of MES/DRDO/CPWD/Cantonment Board/State PWD authorities/CBRI Roorkee/IIT/NIT.

(xii) Copy of fire test certificate issued by Automotive Research Association of India (ARAI) to the manufacturers of the Diesel Generator (DG) sets.

(xiii) Acknowledgement receipt issued by TERM cells (DOT) of the self certificate submitted by the Public Sector/IP-I in respect of mobile tower/BTS (ground based/rooftop) in the format as prescribed by TEC/DOT, establishing/Certifying that all general public area around the tower will be within safe EMR exposure limit as per peak traffic measurement after the antennae started radiating.

(xiv) Application Form duly filled and signed on each page.

(xv) Acceptance letter (Annex II)

(xvi) Scanned copy of slip of RTGS/NEFT/Cantt. Receipt amounting to Rs. 5,000/- plus GST (non refundable) reflecting as cost of Tender From.

(xvii) Scanned copy of slip of RTGS/NEFT/Cantt. Receipt amounting to Rs. 1,10,000/- reflecting as Earnest Money Deposit.

(xviii) Signed and scanned copy of affidavit on stamp paper of Rs. 100/- (Format of Affidavit is provided as Annex I)

2. Duration of Contract – Initially the contract will be granted for two years but can be renewed at the end of the contract period by one year at a time. The total contract term shall, however not exceeding five years with an revise license fee @ 10% on each renewal.

3. Cost of tender fee : The tender fee of Rs. 5000/- plus GST will be paid in the form of RTGS/NEFT/Cantt. Receipt in favour of Chief Executive Officer Kirkee Cantonment payable at Kirkee, Pune and the scanned copy of slip shall be uploaded online alongwith tender.

4. Earnest Money Deposit : Rs.1,10,000/- in the form of Online on E-Chhawani. Cantt. Receipt in favour of Chief Executive Officer Kirkee Cantonment payable at Kirkee, Pune and the scanned copy of slip shall be uploaded online alongwith tender.

5. Security Deposit: 5% of Tendered cost connected with the work concerned will have to be deposited by the contractor as security deposit to this office on acceptance of tender within 07 days. The security deposit will have to be in the form of Demand Draft of any Nationalized Bank/ Cantt Receipt in favour of Chief Executive Officer Kirkee Cantonment and the same will be refunded after one month of expiry of contract period. Failing to deposit the security deposit within the prescribed time limits, the earnest money deposit will be forfeited and action will be taken as per the rules by the Chief Executive Officer, Kirkee which he may think in favour of the Cantonment Board.

For those who are depositing the tender form fee RTGS/NEFT shall deposit at the following Bank Account and EMD through E-Chhawani.

| | | |
|---|---|---|
| **Account Holder** | **:-** | **Chief Executive Officer, Kirkee Cantonment Board.** |
| **Account No.** | **:-** | **480286911** |
| **Name of Bank** | **:-** | **Indian Bank** |

| | | |
|---|---|---|
| **Branch** | **:-** | **Kirkee** |
| **Branch Code** | **:-** | **1481** |
| **IFSC Code** | **:-** | **IDIB000K155** |
| **MICR No.** | **:-** | **411019007** |

6. Validity of Offer: 180 (One hundred and Eighty) days.

7. Last date of on-line submission of tender i.e. Bid submission end date 27 September 2022 15:00 hrs through e-tender website portal at http://eprocure.gov.in/eprocure/app.

8. Date and time of opening : If possible online opening of Technical bid of document on 29 September 2022 after 1500 hrs in the office of the Cantonment Board, Kirkee.

9. Manner of submission of e-tender and its Accompaniments :-

The technical bid and the financial bid of Tender shall be submitted online only as prescribed.

A) Technical Bid

The following documents shall be submitted online on mentioned website portal at http://eprocure.gov.in/eprocure/app. of Cantonment Board, Kirkee on or before the submission date. It shall be the responsibility of the Agency/person/firm to ascertain timely submission of his technical bid to Cantonment Board, Kirkee. The financial /price bid shall not be considered for opening if the submission of technical bid is not done properly. Technical bid to be submitted online only. The Agency shall upload all the attested copies of technical bid / pre-qualification conditions and documents as below:

(i) All the documents as mentioned in Technical bid/Pre Qualification condition.

(ii) The scanned copy of declaration / undertaking on non judicial Govt. Stamp Paper worth Rs.100/- duly notarized stating the status of the individual/firm/company etc. regarding blacklisting etc during last two years by any Govt./Semi Govt departments or any public sector undertaking for executing any work for which the firm is registered.

B) Financial bid / Price Bid :

The Financial bid / price bid shall be upload online on aforesaid the specified website : http://eprocure.gov.in/eprocure/app. The offer should be based on the above works and should be inclusive of all taxes, levies, duties and all other charges including travelling and any other expenses of the contractor / agency and other employees of the contractor/agency. The Cantonment Board, Kirkee will not bear any expenses other than the rate quoted.

The contractor / Agency should not quote the offer anywhere directly.

C) Opening of offer : Technical Bid : Technical bid will be opened in the office of the Cantonment Board, Kirkee as mentioned above.

Technical bid will be opened first to verify its contents as per requirement. If the various documents contained do not meet the requirements of the Cantonment Board, Kirkee the contractor are not eligible for financial bid opening.

Financial Bid : This shall be opened after only if contents of Technical bid online pre-qualification are found acceptable to the Cantonment Board, Kirkee/Chief Executive officer.

10. Rejection of officer: Cantonment Board, Kirkee / Chief Executive officer reserves the Right to reject any or all offers without assigning any reason thereof.

11. Technical bid and financial / price bid will be submitted concurrently, duly digitally signed in the website portal http://eprocure.gov.in/eprocure/app. The tender documents may be downloaded from website and submission of technical bid /financial bid as per tender time schedule.

12. The successful contractor will have to sign an agreement for the purpose with the Board.

13. Submission of Tender :

General process of submission.

Tender are to be submitted only through the website stated above. All the documents uploaded by the Tender inviting Authority form an integral part of contract. Tenderers are required to upload all the tender documents along with the Format (PDF) to the portal in the designated location of Technical Bid. He needs to fill up the rates, downloaded for the work in the designated Cell and upload the same in designated location of Financial bid. The documents uploaded are virus scanned and digitally signed using the Digital Signature Certificate (DSC) by the authorized signatory. Necessary documents showing that the person signing is authorized may be uploaded too. Tenderers should specially take note of all the addendum / corrigendum related to the tender and upload the latest documents as part of tender.

14. Site inspection before submission of Tender.

Before submitting the tender, the intending tenderers should make themselves acquainted thoroughly with the local conditions prevailing at site by actual inspection of the site and taking into consideration all factors and difficulties likely to be involved in the execution of the work in all respect. Communication facilities, climate conditions, availability of labours and for any other reason no claim, whatsoever, will be entertained on these account afterwards. In this connection intending tenderers may contact the office of the undersigned, concerned with the work between 11.30 hrs to 16.30 hrs on any working day prior to date of submission of tenders.

15. Opening of Technical Proposal.

Technical proposals will be opened by the Tender Inviting Authority or his authorized representative electronically from the website stated above, using their Digital Signature Certificate and check the documents as per criteria given who has been qualified will only eligible for financial bid opening.

16. After opening of the financial / price bid proposal the preliminary summary result containing inner- alia, names of contractors and the rate quoted by them will be uploaded. The Tender Inviting Authority or authorized persons will prepare the comparative statement for onward submission for its approval. Award Of Contract ( AOC ) — will be given as per the decision and approval of Board / competent authority.

17. RETURN OF EARNEST MONEY OF THE UNSUCCESSFUL TENDERERS:

For return of the Earnest Money of the unsuccessful tenderers, he/she/they is/are to apply for the same to the Chief Executive Officer, Cantonment Board, Kirkee giving reference to the work off line. Notice Inviting Tender (NIT) No. date of tender, amount, name of work and mode of Earnest Money deposited all in a complete form. The Earnest Money of all tenderers other than the highest tenderer may be refunded, after acceptance of the rate in comparative statement.

18. SCHEDULE OF DATES FOR e-TENDERING:

| Sr. No | Activity Date & Time | |
|---|---|---|
| 1. Publishing date | 07/09/2022 | 15:00 Hrs |
| 2 Document Download start date | 07/09/2022 | 15:00 Hrs |
| 3. Bid submission start date | 07/09/2022 | 15:00 Hrs |
| 4. Bid submission end date. | 27/09/2022 | 15:00 Hrs |
| 5. Technical bid opening date | 29/09/2022 | 15:00 Hrs |

6. Uploading of Financial bid evaluation sheet -- after Monthly Board meeting

19. All the above documents should be duly attested.

20. The submission of tender by a tenderer implies that he has read this notice and conditions of work and has made himself aware of the scope and specifications of the work to be done and of the conditions and rates at which stores, tools and plants, etc. bearing on the executing of the work.

21. Agreement:

After acceptance of the tender, the tenderer will have to enter into an agreement with the Chief Executive Officer, Cantonment Board, Kirkee on Government Stamp Paper of requisite value.

22. Details of Work : All work are within Kirkee Cantonment limits as per the statement given below

REVISED POLICY ON SHARED COMMUNICTION TOWER AND OTHER TELECOM INFRASTRUCTURE TO EXTEND COMMUNICATION NETWORK: KHADKI CANTONMENT

| Sr. No | Proposed LOC for COW | Land | Proposed site | Security Clearance | Lat/Long |
|---|---|---|---|---|---|
| 1 | KCB - Cantonment Board's Hindu Cremation ground near staff quarters. | 'B-4' 27/2 | Cantonment Board's Hindu Cremation ground near staff quarters. | Clear from security point of view | - 18.570779<br>- 73.846636 |
| 2 | Nehru Garden | 'C' 135 | Cantonment Board's Nehru Garden, Bharat Ratna Dr. Babasaheb Ambedkar Road | | - 18.563467<br>- 73.852598 |
| 3 | Cantonment Sports Complex | 'C' 58-A | Cantonment Board's Sports Complex, Bharat Ratna Dr. Babasaheb Ambedkar Road | | - 18.569218<br>- 73.845704 |
| 4 | Cantonment Board Ghat | 'B-4' 27/2 | Cantonment Board Ghat on Mula River near Mahadeo and Sai Temple | | - 18.571765<br>- 73.847741 |
| 5 | Lokmanaya Tilak Road | 'C' Road Berm | On the junction of Lokmanaya Tilak Road and Alandi Road | | - 18.555212<br>- 73.874431 |
| 6 | Dr. Babasaheb Ambedkar Road | 'C' 85 | Island on Bharat Ratna Dr. Babasaheb Ambedkar Road near old Holkar Bridge | | - 18.556406<br>- 73.862607 |
| 7 | Junction of Mula Road and Shaheed Road | 'C' 245 | Junction of Mula Road and Shaheed Road | | - 18.552942<br>- 73.856790 |
| 8 | Kirkee Cantonment Board Office | 'C' 200 | Kirkee Cantonment Board Office | | - 18.558040<br>- 73.851947 |
| 9 | Kirkee Business Center | 'C' 134-B | Kirkee Business Center | | - 18.564672<br>- 73.851260 |

REVISED POLICY ON SHARED COMMUNICTION TOWER AND OTHER TELECOM INFRASTRUCTURE TO EXTEND COMMUNICATION NETWORK: CAFVD
(AS RECEIVED FROM LMA)

| Sr. No | Proposed LOC for COW | Land | Proposed site | Security Clearance | Lat/Long |
|---|---|---|---|---|---|
| 1 | GLR Sy No. 1B (Part) (Aresenal CAFVD, Kirkee) | A1 Defence Land | GLR Sy No. 1B (Part) (Aresenal CAFVD, Kirkee)(Same loc as existing loc) | Clear from security point of view | - 18.574284<br>- 73.857920 |
| 2 | GLR Sy No. 218 (Part) (Officers Mess, CAFVD, Kirkee) | A1 Defence Land | GLR Sy No. 218 (Part) (Officers Mess, CAFVD, Kirkee) | | - 18.554959<br>- 73.850395 |
| 3 | GLR Sy No. 5 (Part) | A1 Defence Land | GLR Sy No. 5 (Part) | | - 18.565631<br>- 73.855394 |
| 4 | GLR Sy No. 127 ME line B Park | A1 Defence Land | GLR Sy No. 127 ME line B Park | | - 18.561852<br>- 73.846450 |

REVISED POLICY ON SHARED COMMUNICTION TOWER AND OTHER TELECOM INFRASTRUCTURE TO EXTEND COMMUNICATION NETWORK: BEG & C
(AS RECEIVED FROM LMA)

| Sr. No | Proposed LOC for COW | Land | Proposed site | Security Clearance | Lat/Long |
|---|---|---|---|---|---|
| 1 | Office Complex, HQ BEG & C (T2) | A1 Defence Land | Office Complex, HQ BEG & C (T2) )(Same loc as existing loc) | Clear from security point of view | - 18.549696<br>- 73.863870 |
| 2 | CIW (EP SHED), T3 | A1 Defence Land | CIW (EP SHED), T3 | | - 18.549686<br>- 73.861167 |
| 3 | Apsra / Aashiana (T4) | A1 Defence Land | Apsra / Aashiana (T4) (Same loc as existing loc) | | - 18.544857<br>- 73.861014 |
| 4 | TB-1 (T1) | A1 Defence Land | TB-1 (T1) | | - 18.544974<br>- 73.871897 |
| 5 | Adm Bn 0BEG & Centre | A1 Defence Land | TB-1 (T1) | | - 18.550829<br>- 73.868421 |

REVISED POLICY ON SHARED COMMUNICTION TOWER AND OTHER TELECOM INFRASTRUCTURE TO EXTEND COMMUNICATION NETWORK: MH KIRKEE
(AS RECEIVED FROM LMA)

| Sr. No | Proposed LOC for COW | Land | Proposed site | Security Clearance | Lat/Long |
|---|---|---|---|---|---|
| 1 | MH Kirkee | A1 Defence Land | GLR Sy No 268 (Part) (MH Kirkee) | Clear from security point of view | - 18.553710<br>- 73.839420 |

REVISED POLICY ON SHARED COMMUNICTION TOWER AND OTHER TELECOM INFRASTRUCTURE TO EXTEND COMMUNICATION NETWORK: AFK
(AS RECEIVED FROM AFK)

| Sr. No | Proposed LOC for COW | Land | Proposed site | Security Clearance | Lat/Long |
|---|---|---|---|---|---|
| 1 | Type 2 area Rangehills Estate | A1 Defence Land | Type 2 area Rangehills Estate | Clear from security point of view | - 18.55243<br>- 73.84356 |
| 2 | Type 3 area Rangehills Estate | A1 Defence Land | Type 3 area Rangehills Estate | Clear from security point of view | - 18.55856<br>- 73.83933 |
| 3 | F-Type area Rangehills Estate | A1 Defence Land | F-Type area Rangehills Estate | Clear from security point of view | - 18.545348<br>- 73.844562 |
| 4 | Near Methodist Church of Ordnance Estate | A1 Defence Land | Near Methodist Church of Ordnance Estate | Clear from security point of view | - 18.558<br>- 73.85438 |
| 5 | Near NGO Hostel of Ammunition Factory Khadki | A1 Defence Land | Near NGO Hostel of Ammunition Factory Khadki | Clear from security point of view | - 18.56916<br>- 73.855109 |
| 6 | Near Guest House of AFK (Russian Hostel of Ordnance Estate) | A1 Defence Land | Near Guest House of AFK (Russian Hostel of Ordnance Estate) | Clear from security point of view | - 18.573751<br>- 73.866485 |

23. The Board will not be responsible for any accident etc, if it happens to the laborers engaged by the Firm / Tenderer for the said work and any claim whatsoever.

24. The Firm/Tenderer has to produce the valid authorized Certificate for verification.

25. The Tendered cost of work / works as indicated may increase or decrease due to administrative and technical reasons without affecting Terms and conditions and approved rate.

26. The applicant, who may owe any amount/dues to the Kirkee Cantonment Board /any Govt. department will not be eligible to participate.

27. The Cantonment Board, Kirkee / Chief Executive Officer reserves the right to cancel/reject all or accept any tender without assigning any reasons thereof.

28. Tenders with any pre-condition or received by post / fax will not be accepted.

29. The Cantonment Board, Kirkee / Chief Executive Officer reserves the right to change the scope/quantity/amount/period of work as per requirement in public interest.

30. The intending tenderer should not be defaulter in Cantonment Board, Kirkee nor should owe any dues to Cantonment Board, Kirkee.

Chief Executive Officer
Kirkee Cantonment Board.

_____

Signature of the Tenderer

Annex I

DECLARATION BY THE TENDERER /CONTRACTOR

1. I/we_____ age_____ year is resident of

_____ do hereby certified that

given undertaking that I am the proprietor/partner/owner of the Company/firm and has submitted the Tender for the work _____

_____ The documents uploaded ( in envelope no. 1) on http://eprocure.gov.in/eprocure/app. are TRUE, CORRECT & COMPLETE (in all respect) to the best of my knowledge.

2. It is ought to have been held that there are no errors and /or mistakes in the uploaded documents.

3. If there is any wrong, false misleading information I will be liable for legal action against me.

4. I or We hereby tender for the execution in Kirkee Cantonment Board (hereinafter referred to as the Board which expression shall include their successors and assigns) of the work specified in such memorandum to: The current rates of Collection of Fees from Cantonment area, and in acceptance in all respects in accordance with the said conditions

5. I / We hereby agree to abide by and fulfill all the terms and conditions / provisions as annexed hereby and so far as applicable or in default thereof to forfeit and pay to the Board the sum of rupees mentioned in the said conditions without prejudice to the Board's right to claim damage for breach of contract. The sum of Rs. 1,10,000/-(Rupees One Lakh Ten Thousand only) forwarded as Earnest Money is to be absolutely forfeited by the Board should this tender be accepted and if I/We default in executing the Contract Agreement within the specified time limit. The security deposit at the rate of 10 % of the tendered cost in the shape of Cantt 4-B receipt in favour of Chief Executive Officer, Cantonment Board, Kirkee is to be deposited within 07 days of receipt of tender acceptance letter. The Earnest Money will only be refunded to the tenderers after the finalization of the tender by the Board and to the tenderer whose tender is accepted by the Board his Earnest Money will be refunded after he deposits the Security Deposit

6. If the work is awarded to me/us and I/We failed to deposit the Security Deposit as intimated by you, the EMD submitted by me/us be forfeited without intimated to me/us and I/We will not participate in the said tender procedure of the said work.

Signature of the contractor_____

(before submission of tender)

Dated: _____

Occupation: _____

Note : The above declaration is to be submitted on non judicial stamp paper of Rs.100/-

_____

Signature of the Tenderer

GENERAL TERMS AND CONDITIONS

1. The following security aspects will be strictly adhered to by the Access Service Licensees and IP-1 Telecom Service providers and an undertaking to this effect in this regard will be given by them.

2. Use of Defence land / buildings by the Service Provider will not, in any manner, impinge upon the security of the Defence Area.

3. If at any stage, the operational situation so demands, services provided by these operators may be blocked in an emergency on instructions from respective Command Headquarters. No compensation shall be payable to the operator if such blocking or suspension of services is for equal to or less than 15 days. However, if the services are blocked or suspended for more than 15 days then either pro-rata lease rent/license fee for blocked/ suspended period shall be payable to the service provider or the lease/ license period will be extended for such blocked/suspended days, as per option given by the service provider.

4. Adequate measures will be adopted to ensure security of vital installations in Defence Area, by monitoring activities of such Access Service Licensees and IP-1 Companies/Communication Network Operators' personnel from time to time.

5. The Service provider will erect their Communication Towers only at the sites leased to them. The participating Service Providers and the local Defence Authority should jointly identify the site locations for installation of cellular mobile communications towers, based on security and technical feasibility with security being the overriding factor. No change in site will be resorted to without the permission of the appropriate Defence authority i.e. GOC-in-C Command/ equivalent/PDDE, as the case may be. Further, for change of the site, the Board of Officers is to be convened for selection of new site as described in para 3(i) above, which will consider the matter including for security clearance.

6. Service Providers will make available the particulars of persons employed by them of the Local Defence Authorities. Antecedents of all such persons will be verified and if found acceptable, they will be issued with security passes to allow them to enter the Defence Area.

7. The Local Defence Authorities will reserve the right to deny access to any of the Service Provider's employees whose activities are detrimental to the security of the Defence installation.

8. The Service Provider will at all times, provide access to the Local Defence Authority or his authorized representatives, to the Communication Towers to ensure that no illegal or undesirable activities are being carried out by the Service Provider or his representative.

9. The Service Provider will not use the tower and / or its equipment for any objectionable purpose. If found, the Local Defence Authority will have the authority to order temporary closure of the services of that Service Provider pending final decision by the Ministry of Defence. No compensation will be payable for such closures. The other Service Providers would continue to provide services.

10. If appropriate authority comes to a conclusion that the Service Provider has willfully violated any of the conditions for grant of permission, it may temporarily withdraw permission or order closure of the service of the service provider pending final decision by MoD. However, no action shall be taken unless the service provider has been given an opportunity of being heard.

11. Entry of foreign nationals to installation site of towers will be permitted only after due security clearances by Local Military Authority.

12. Photography of Vulnerable Areas and Vulnerable Points and Defence Establishments in the Cantonment area/ Military Station, by the employees of the Service Providers will not be permitted.

13. Service Providers and the employees of these service providers will abide by all security instructions of the Military Stations/Cantonments.

14. The Service Provider will be solely responsible to ensure the security of the Communication Towers and its supporting systems and accessories.

15. Towers in Military Stations/Cantonments should be available to all service providers on demand.

16. Sketch/ Map of the towers indicating location should be provided to local Defence Authority for routine security checks. In cases, where communications towers of the service providers are situated outside Cantonments/Military Stations and they would only like to lay cables, to provide services, in the Cantonments/Military Stations, the Access service Licensees/Infrastructure Provider-1 (lP-1) will also furnish the network details from where the optical fiber cables (OFC) are being brought into Cantonment/Military Stations and taken out to feed into the network ahead to the local Military Authority.

17. The following technical aspects will be strictly adhered to by the Access Service Licensees and lP-1 Companies:

(A) Obtaining frequency clearance from Standing Advisory Committee for Frequency Allocation (SACFA) and coordinate frequency in use with local Signal Authority.

(B) Obtaining SACFA clearance as per the laid down procedure, for a particular latitude and longitude. They will not be permitted to move their antenna towers as per their convenience. In case they need to shift the site of the antenna tower, they will need to obtain a fresh SACFA clearance for the new location with the exact latitude and longitude.

(C) In case the communication tower / facilities so installed by the Service provider causes any interference / obstruction to the Army / Air Force / Navy / Coast Guard Communications, the Service Provider may be asked to discontinue his services, for which no compensation other than the balance of advance rent paid by him will be payable to the Service Provider.

(D) Obtaining “No Objection Certificate” from Civil Aviation and Air Force Authority regarding the installation of the Cellular Towers in their vicinity and abide by all their stipulations as necessary.

(E) Proper earthing of the installation will be ensured by them.

(F) Proper lightning protection and fire fighting devices will be installed by them.

18. (a) The above mentioned security and technical aspects will also be applicable to all service providers who share the communication Towers and other infrastructure. **An undertaking to this effect may be jointly furnished by the Telecom Service providers/IP-1 and the concerned service provider sharing the tower and infrastructure.**

(b) If appropriate authority comes to a conclusion that the service provider has willfully violated any of the conditions for grant of permission, if may temporary withdraw permission or order closure of the service of the service provider pending final decision by MoD. However, no action shall be taken under this unless the service provider has been given an opportunity of being heard.

19. <u>Lease of Defence Land for static Towers for Access Service Licensees/ IP-1 Companies</u>,

i) Only class A-1, analogous to A-1 land, A-2, B-4 and C land will be leased for the purpose.

ii) Land to be leased should be the minimum required for setting up such towers and related equipment's, subject to a maximum area of 200 sqmt.

iii) Lease will be sanctioned initially for a period of 02 years and may be renewed further for a period of five years.

iv) Applications from eligible Service providers will be invited through open tender.

v) Lease rent will be fixed on the basis of highest bid through competitive tender.

vi) Bidding for annual rent would be in terms of % age of market value of land fixed on basis of STR in Cantonment areas and Collector's circle rates outside Cantonment areas. This will be subject to a minimum rent of 5% of land value in Cantonments/Military stations. Market value of land will be determined by DEO.

vii) No premium will be charged, However one year rent will be collected in advance.

viii) Leases for A-1 land A-2 and B-4 land shall be signed by DEO on behalf of the Government while lease of land under the management of Cantonment Board shall be executed by the President, Cantonment Board and the Chief Executive Officer, after obtaining sanction from the Competent Authority. The lease shall be executed under modified Schedule IX of the Cantonment Land Administration Rules, 1937.

20. CEO, Kirkee Cantonment Board (KCB) reserves the right to reject any or all tenders without assigning any reason. After opening of the financial bid, if the tenderer withdraws his tender for any reason, his earnest money deposit will be forfeited.

21. Successful tenderer will have to execute an agreement at his cost on stamp paper of required value within 7 days from the date of letter of confirming him about acceptance of his tender and EMD will treated as initial security deposit.

22. In case the successful tenderer failed to execute the agreement, the security deposit will be forfeited.

23. Tenderer should see the site and get acquainted himself with the conditions of the soil, field approach road and then only he should quote the rates.

24. If there is any kind of loss to KCB/LMA property due to negligence of tenderer or his staff then whole responsibility will be of tenderer and loss will be recovered from tenderer.

25. In case of any dispute, the decision of Chief Executive Officer will be final and binding on both the parties.

26. Conditional offer will not be acceptable.

27. Tenderer will be responsible for liabilities as per Labor Laws, Minimum Wages Act, Indian Electricity Act, GST & all other statutory liabilities in force from time to time for staff/Employees / work of tenderer on any ground.

28. Successful tenderer should have to install Cell tower on Wheel within a period of one month from the execution of agreement. In case of failure to do so, the security deposit of the tenderer will be forfeited.

29. Necessary care will be taken by the company that the erection of Cell on Wheels does not cause problems for traffic movement and parking.

30. Laying of Optical Fiber Cables will not be permitted.

31. The company will share the towers with other mobile operators such as AIRTEL, IDEA, VODAFONE, TATA, MTS, RELIANCE, BSNL, & UNINOR ETC. at their own risk, cost and consequences and the Board will have no concern with the same.

32. The company will bear expenses for separate electricity connection and bill of electricity consumption if any.

33. The said structure covers installation of the Cell Tower on Wheel of multi operator telecom service providers at any time during the tenure of contract.

34. The company will pay annual license fee within twenty days of execution of agreement in advance by way of demand Draft of any Nationalized Bank Pune Branch in favor of Chief Executive Officer, Kirkee Cantonment Board or by Cantt 4-B receipt.

35. The license fee once paid will not be refunded to the company under any circumstances.

36. The equipments and tower structure shall be property of the company and company shall be at liberty to remove the equipments on termination / expiry of this memorandum of understanding as the case may be.

37. The Board will not be responsible for any disturbance in communication between various mobile companies and the /antenna/towers erected by the company.

38. In case of failure by the company to make payment of license fees as mentioned above, the Board by giving one month prior notice will seize the equipment's and CoW and in that case the company will be solely responsible to bear the loss/damages etc.

39. The Board will be at liberty to expand the project by giving permission for erection of mobile antenna/ tower to any other companies for any other location and in that case the company will not have any objection.

40. No commercial or any kind of advertisement is permitted on the antenna /towers erected by the company. If it is noticed the company will be liable to pay the penalty as decided by the Chief Executive Officer, Kirkee Cantonment Board.

41. The permission granted by the Board does not create any right, title, interest of the highest bidder on the land used for purpose of erection of tower on wheel.

42. This permission granted by the Board to set up Cell Tower on Wheel does not create any tenancy rights in favour of the company.

43. The public grievances if any on account of erection tower on wheel will be responsibility of the company, the Board will not be liable for any risk cost and consequences that may arise on account of public grievances.

44. The company will abide by the existing laws / rules/ regulations as applicable for the projects and the Board will not be liable for the same.

45. The company will abide by the instructions / directions that may be given by the Chief Executive Officer/ Board from time to time.

46. The Board reserves right to modify/cancel/amend/add/ alter any of the conditions of this Tender Documents at any time

47. The contract will be liable to be terminated in following cases-

i) On expiry of agreement period of first 05 years ( 60 calendar months).

ii) In case company has been declared as insolvent by competent authority. However in such case Board will seize all equipments and antenna / tower erected by the company without any compensation.

iii) Breach of any term/condition by the company or failure by the company to perform obligations under the agreement executed.

iv) If company serves 30 days prior notice showing its inability to complete the agreement period. In such case Board will seize all equipments and tower erected by the company without any compensation.

v) If the company does not pay the annual license fees or commits any breach of condition of agreement or tender notice.

48. If any accident/claim/death/injury/complaint/nuisance occurrence on account of installation of tower on wheel. Then in that case it is the company who will be liable for all costs/consequences etc. which may arise on account of installation of such tower.

49. The company will produce structural stability certificate within fifteen days of erection of tower, failing which the agreement executed will stand cancelled.

50. Any disputes /claims and /or questions whatsoever arising out of the memorandum of understanding or any dispute regarding the representations, objections between the parties or the construction interpretation or the application thereof or any clause or thing herein contained or as to any act, deed, or any clause or omission of any person or as to any other matter in any way relating to tender or MOU shall be referred to sole arbitrator who shall be a committee constituted as per provisions of Sec 327 of Cantonment Act 2006. The venue of such arbitration will be at Kirkee. The decision given by the sole arbitrator shall be final and binding upon both the parties. The arbitrator shall have summary powers to decide the dispute and shall also have power to dispense with the provisions of Civil procedure Code and the Indian evidence Act. The Arbitration shall be fast track arbitration and shall be concluded within a period of three months.

51. The land allotted will not be sub-leased or transferred in any form to any party and if the same is not required, will be given back to Cantonment Board (para 3 of GOI MOD letter No.11026/1/2005/D(Lands) dated 12-09-2008 refers).

52. Documents required for grant of license; standards for exposure limits of radio frequency and other technical requirements as prescribed by DoT from time to time should be strictly complied. An undertaking to that effect will be submitted by the successful tenderer.

53. The Security and Technical aspects mentioned in para 2 and 3 of the policy letter No.11026/1/2005/D (Lands) dated 12-09-2008 ( copy attached ) will be strictly adhered to by the tenderer.

54. The Chief Executive Officer/Cantonment Board Kirkee reserves the right to add/amend/modify/alter any or conditions of the tender.

55. This tender document will form part and parcel of the agreement.

_____

Signature of the Tenderer

Annex II

TENDER ACCEPTANCE LETTER

( To be given on Company letter Head )

To,

…….

…….

…….

…….

Sub : Acceptance of Terms & conditions of tender.

Tender Reference No……..

Name of Tender Work :- ……

Dear Sir,

I /We have downloaded / obtained the tender documents ( s ) for the above mentioned 'Tender / Work' from the web site (s) namely:

……

……

As per your advertisement, given in the above mentioned website ( s ).

2. I/We hereby certify that I/We have read the entire terms and conditions of the tender documents ( including all documents like annexure ( s ) schedule(s) etc ) which form part of the contract agreement and I/We shall abide hereby by the terms/conditions/clauses contained therein.

3. The corrigendum (s) issued from time to time by your department /organization too have also been taken into consideration, while submitting this acceptance letter.

4. I/we hereby unconditionally accept the tender conditions of the above mentioned tender document(s) / corrigendum(s) in its totality / entirety.

5. I/We do hereby declare that our Firm has not been blacklisted /debarred by any Govt. Department / Public sector undertaking.

6. l/We certify that all information furnished by our Firm is true & correct and in the event that the information is found to be incorrect / untrue or found violated, then your department / organization shall without giving any notice at reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including the forfeiture of the full said earnest money deposit and security deposit if any absolutely.

Yours Faithfully,

Signature of the Bidder / contractor, with Official Seal